

IN CONTEXT

FOCUS

Constitutional government and citizens' rights

BEFORE

1215 Magna Carta promises rights and protections for all “free men” in England.

1689 England's Bill of Rights limits the monarchy's power and sets out individuals' rights.

1776 The Second Continental Congress of 13 American colonies adopts the Declaration of Independence, cutting all political ties with Britain.

AFTER

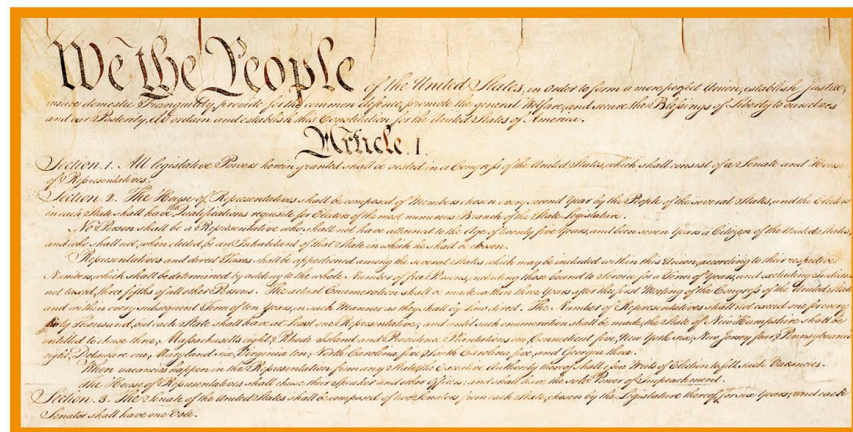
1789 The Declaration of the Rights of Man and of the Citizen sets out civil rights in France.

1791 Poland creates the first modern national constitution in Europe.

1803 *Marbury v. Madison* establishes the principle of judicial review, giving the US Supreme Court the power to interpret the Constitution.

1948 The UN's Universal Declaration of Human Rights (UDHR) affirms individual rights worldwide.

Written in the summer of 1787, the Constitution of the United States is the oldest national constitution. Ancient Greek city-states had their own written constitutions, but the US Constitution was the first to set out a framework for governing modern nations, and has inspired national constitutions ever since.



The process began in 1786, when New York lawyer and politician Alexander Hamilton wrote a report calling for a convention (later known as the Constitutional Convention) to address the inadequacies of the Articles of Confederation—the agreement between the 13 colonies, ratified in 1781, that served as an early constitution.

From war to independence

The Articles had been drafted in 1776–1777 during the Revolutionary War, waged by the colonies to fight off British rule. At this time, the Continental Congress was the governing body of the colonies. The Delegates to the First Continental Congress initially met in 1774 to organize a response to the Coercive Acts that Britain had imposed to punish those who resisted taxation. The colonists' resentment of “taxation without representation” became a call to arms. In 1775, when the Second Continental Congress convened, the war was underway. On July 4, 1776, the Congress adopted the Declaration of Independence, drafted by Thomas Jefferson (its main author), John Adams, and Benjamin Franklin—three of the Founding Fathers who had united the colonies and led the revolt against Britain.

The first page of the US Constitution famously begins with the words “We the People of the United States, in order to form a more perfect Union, establish Justice . . .”

Among the Declaration's provisions were that the united colonies “ought to be Free and Independent States.” The Articles had reflected this, creating a confederation of 13 sovereign states. By 1786, however, 3 years after the Treaty of Paris confirmed America's independence, Hamilton and several other Founding Fathers recognized that the sovereignty of each state was weakening the power of the national government, leaving it unable, for instance, to tax the population or enforce requests for troops. To replace the Articles, they wanted a constitution that could bind the confederation of states together.

Fierce debate

The Constitutional Convention took place in Philadelphia between May and September of 1787. The 55 delegates represented all states except Rhode Island, which opposed a stronger central government. George Washington, who had led the Continental Army in the Revolutionary War, was elected convention president.